

2018 P L C (C.S.) Note 25

[Lahore High Court]

Before Ayesha A. Malik and Jawad Hassan, JJ

JAVED AHMAD RIAZ

Versus

GOVERNMENT OF PUNJAB and others

I.C.A. No.1291 of 2017, decided on 12th June, 2017.

Constitution of Pakistan---

---Art. 199---Constitutional jurisdiction of High Court---Scope---Disputed question of fact---Alternate remedy, availability of---Appellant was aggrieved of order passed by Single Judge of High Court whereby his petition was dismissed---Validity---Multiple reliefs sought by appellant in his constitutional petition itself showed that certain disputed questions of facts were involved in the matter---High Court under its jurisdiction under Art.199 of the Constitution could not resolve such questions and appellant could adopt appropriate forum/alternate remedy for the determination of the same---Single Judge of High Court had rightly dismissed petition of appellant on such grounds--- Division Bench of High Court declined to interfere in order passed by the Single Judge of High Court as same was neither illegal nor perverse and was passed in consonance with spirit of law---Intra-court appeal was dismissed in circumstances. [para.7 & 9 of the judgment]

Asdullah Mangi and others v. Pakistan International Airlines Corporation and others 2005 SCMR 445 ref.

Muhammad Irfan Malik for Appellant.

ORDER

JAWAD HASSAN, J--- Through the instant Intra Court Appeal the Appellant has challenged the validity of impugned order dated 17.05.2017 passed in Writ Petition No.4634/2016 by the learned Single Judge whereby he dismissed the petition filed by the Appellant.

2. Brief facts tersely revealed from this Appeal are that the Appellant filed W.P. No.4634/2016 and made multiple prays to the effect that a writ of certiorari may be issued by declaring that Notification SRO No.1687FT(F&A) dated April, 1956 is ineffective and has expired since 1986 and the lien of the suspension over the land of the Appellant is no more operative and the Respondents may be directed to remove the name of the forest department from the revenue record and further the Respondents may be directed not to interfere in the peaceful ownership and possession of the Appellant over the land, which was dismissed by the learned Single Judge vide the impugned order. Hence, the instant Appeal.

3. Learned counsel for the Appellant submitted that the impugned order is liable to be set aside on the grounds that the same is against law and facts; that the learned Single Judge has erred while passing the impugned order that factual controversy is involved in the matter rather the Appellant had raised question of law by submitting that the above referred notification/SRO is ineffective upon the ownership of the Appellant.

4. We have heard the arguments of the learned counsel for the Appellant and examined the record available with this Appeal.

5. The examination of the impugned order depicts that the same has been passed on the basis of following three grounds:

i. Prior to establishing the afore-noted questions no effective relief can be granted to the Petitioner, as the jurisdiction of this Court is meant to enforce the clear legal rights, but not to establish the same from him.

ii. The prayers quoted as well as contention raised by the learned counsel for the Petitioner brings the case within the realm of disputed/factual questions, resolution of which require a thorough inquiry, which this Court in exercise of its constitutional jurisdiction under Article 199 of the Constitution cannot undertake.

iii. The Petitioner has alternate efficacious remedy available to him by approaching the Civil Court, therefore, jurisdiction of this Court is, even otherwise barred.

6. The jurisdiction of this Court has been defined in Article 199 of the Constitution. As per Article 199(1)(c) and (2) of the Constitution, it has been stated that on the application of any aggrieved person, make an order giving such directions to any person or authority, including any Government exercising any power or performing any function in, or in relation to, any territory within the jurisdiction of that Court as may be appropriate for the enforcement of any of the Fundamental Rights conferred by Chapter 1 of Part II.

(2) Subject to the Constitution, the right to move a High Court for the enforcement of any of the Fundamental Rights conferred by Chapter 1 of Part II shall not be abridged.

Reliance in this regard is placed on the case titled Asdullah Manzi and others v. Pakistan International Airlines Corporation and others (2005 SCMR 445) wherein the Hon'ble Supreme Court of Pakistan held as under:

"The right which is the foundation of an application under Article 199 of the Constitution is a personal and individual right. The legal right may be a statutory right or a right recognized by the law. A person can be said to be aggrieved only when a person is denied a legal right by someone who has a legal duty to perform relating to the right. There must not only be a right but a justifiable right in existence, to give jurisdiction to the High Court in the matter. Unless whatever right, no order can be issued under Art.199."

It has been further held in the judgment supra that Object of proceedings initiated under Article 199 of the Constitution is the enforcement of a right and not the establishment of legal right and therefore, the right of the incumbent concerned which he seeks to enforce, must not only be clear and complete but simplicitor and there must be an actual infringement of the right.

7. Furthermore, the multiple prayers made by the Appellant in the petition, itself shows that certain disputed question of facts are involved in the matter which, under the jurisdiction of this Court, cannot be resolved and the Appellant may adopt appropriate forum/alternate remedy for the determination of the same, as such the learned Single Judge has rightly dismissed the petition of the Appellant on the above referred three grounds and all these grounds have been strengthen by relying upon the judgments of the apex Court. Learned counsel for the Appellant has failed to show any illegality or perversity in the impugned order which has been passed in consonance with the spirit of law and judgment of the apex Court.

8. We fully agree with the finding of the learned Single Judge who while relying upon the judgments of the apex Court dismissed the petition being not maintainable. In view of above circumstances, we see no illegality or jurisdictional error in the impugned order which has been passed in line with the dictates of law and does not warrant any interference by this Division Bench.

9. Resultantly, the instant Appeal, being bereft of any force, is accordingly dismissed in limine.

MH/J-12/L Appeal dismissed.